

25STCV26896 25STCV26896

County: los-angeles

Division: Civil Law and Motion

Department: 310

Hearing date: 2026-08-20

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Case Number: 25STCV26896 Hearing Date: August 20, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 20

Hearing Date: August 20, 2026

Case Name: Risman v. SBS Trust Deed Network, et al.

Case No.: 25STCV26896

Matter: Motion to "Unseal"

Moving Party: Plaintiff Jacob Risman

Responding Party: Defendants SBS Trust Deed Network and Mitchell Willet

Notice: OK

Ruling: The Motion is granted in part.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

On October 8, 2025, Plaintiff Jacob Risman filed the operative First Amended Complaint ("FAC") for (1) fraud, (2) conversion, and (3) violations of the UCL.

On April 20, 2026, the Court partly granted Defendants' motion to quash business record subpoena issued to Wells Fargo. The Court ruled: "Plaintiff's specific allegations of fraud, conversion, and alter ego liability provide the necessary 'compelling interest' for disclosure. However, the Court finds the request for records from 2021 through 2024 to be somewhat overbroad at this juncture. The critical window for the alleged misconduct spans from the time of the bid (October 2022) through the final return of funds (March 2023). Accordingly, the Court modifies the temporal scope of the subpoenas to January 2022 through June 2023."

Subsequently, Wells Fargo Bank, N.A. served its production directly to the Court in a sealed envelope per Evidence Code § 1560(b)-(c). Plaintiff now requests to obtain these documents.

Evidence Code § 1560(d) states, "Unless the parties to the proceeding otherwise agree, or unless the sealed envelope or wrapper is returned to a witness who is to appear personally, the copy of the records shall remain sealed and shall be opened only at the time of trial, deposition, or other hearing, upon the direction of the judge, officer, body, or tribunal conducting the proceeding, in the presence of all parties who have appeared in person or by counsel at the trial, deposition, or hearing. Records that are original documents and that are not introduced in evidence or required as part of the record shall be returned to the person or entity from whom received. Records that are copies may be destroyed."

Evidence Code § 1560(d) plainly allows the Court to open these documents, within its discretion, at the time of this Motion hearing or other appropriate hearing. To argue otherwise would be to allow Wells Fargo to control this Court's docket; it is this Court that manages the docket and the practicalities of discovery.

The Court already ruled that Plaintiff is entitled to these financial documents. The Court will require that the clerk release the documents jointly only to Plaintiff and Defense counsel in an "attorneys-eyes-only" setting. Counsel shall both be present and agree on limiting the documents only to January 2022 through June 2023. Once the documents are filtered to comply with the Court's April 20, 2026, ruling, only those documents shall be released to the parties subject to any applicable protective order.

The Motion is granted in part as set forth herein. The release date for the documents will be discussed. The documents will be released in Department 310.

Moving party to give notice.